HBL WhatsApp -Terms & Conditions

By using HABIB BANK LIMITED (HBL) WhatsApp banking channel, you agree to HBL's Terms & Conditions. This is necessary for you to use the WhatsApp messenger platform.

- **HBL WhatsApp Banking Channel**
  - HBL WhatsApp Banking is a channel which will be used for general query management & customer support as a new, but familiar channel for customers to approach the bank in the most convenient possible way.
- **Service**
  - Service(s) means services, either customized or otherwise, provided by HBL, its Partner(s), Services Provider(s), and WhatsApp Channel, from time to time, within the Territory of Pakistan, AJ&K Gilgit Baltistan ("Territory").
- **Privacy Notice**
  - When you use HBL WhatsApp Banking Channel, HBL needs your personal information to provide its services. You are responsible for providing and maintaining accurate and updated personal information, and for safeguarding your account information. We understand you have authorized HBL to verify and authenticate your personal information, at any time. HBL will not be liable for any loss or damage arising from your failure to comply with the requirements of HBL , its Partners and Service Providers.
  - If you hand over a device with the HBL WhatsApp Self-Service Banking Channel installed to another individual, you should lock/deactivate the device before doing so. If devices with HBL WhatsApp Self-Service Banking Channel installed are lost or stolen, you inform the relevant authority.
- **Security**
  - We maintain high standards of security. We expect that you will not share your phone, connected via our network, let anyone else access your phone/devices, or do anything else that might jeopardise the security of your connection. You are reminded to use your mobile devices safely. HBL shall not be liable for any damages or losses suffered as a result of breach of any of the actions stated above.
- **Third Party Services**
  - We do not endorse any third party services. Third party providers of websites and applications (including WhatsApp) accessed by you through the Service are accessed at your own risk, and we have no liability for third party services. If third party websites or applications (including WhatsApp) cause any problems or harm, you should seek redress directly from the third party provider of those services. We have no responsibility in such matters and cannot assist you regarding the same. Third party providers of websites or applications (including WhatsApp) that you access through any network/ mobile phone number may have their own terms and conditions. It is your responsibility to read and adhere to such terms and conditions.

- **Entire Agreement**
  - These Terms & Conditions are the entire agreement between us and you regarding use of HBL's WhatsApp Banking Channel and related services (excluding any services for which you have a separate agreement with us).
  - By using the HBL's service you agree to these Terms. We may update these Terms and conditions by updating its website and all such platforms where these terms and conditions are posted at any time without notice as we deem necessary and you

shall be bound by all such updates. It is hereby recommended that you routinely check for any updates to these terms and conditions.

General Terms

- **General**
  - These General Terms apply generally to the use of any or all of HBL's services (the "Service") via/through HBL WhatsApp Self-Service Banking Channel. Our Service is diverse, so additional service specific terms ("Service Specific Terms") may apply.
  - HBL may engage or otherwise cooperate with affiliates, suppliers, partners and other third parties in connection with the Service, and, where applicable, "HBL" or "we" shall also be understood as a reference to such third parties.
  - By using the Service you agree to these Terms of Use, General Terms and any Service Specific Terms and the Privacy Statement (collectively referred to as "Terms")
- **The Service**
  - HBL's Service consists of digital products and/or services distributed over the internet to individual consumers for private use. The Services are accessible at our websites (the "Website") and, for certain Services on your own device(s) after you have installed it.
  - Parts of the Service may display content that is not HBL's (including User Content). Such content is the sole responsibility of the person or entity that has made it available.
- **Privacy and Personal Data**
  - In connection with the provision of the Service, HBL will collect and process personal data about you and your use of the Service. HBL's privacy policy may be amended from time to time. You understand that by using the Service you consent to the collection, use and disclosure of your Personally Identifiable Information (PII) and aggregated data.
  - By using our Service, you agree that HBL can use your personal data in accordance with our privacy statement and as otherwise set out in any applicable Service Specific Terms and provide consent of your personal data that maybe transferred outside your home territory.
- **User Content and Submissions**
  - HBL's services and/or WhatsApp Self-Service Banking Channel may allow you to submit, post or display content, such as information, data, text, software, music, sound, photographs, graphics, videos, advertisements, messages or other materials ("User Content"). You are solely responsible for such content. HBL may review and remove any User Content that, in its sole judgment, violates the Terms, applicable laws, or generally accepted practices or guidelines in the Jurisdiction.
  - Prohibited User Content under the Terms includes, without limitation, content which: is offensive, such as User Content that engages in, endorses or promotes racism, bigotry, discrimination, hatred, harassment or physical harm of any kind against any group or individual;
    - involves the transmission of "junk mail", "chain letters" or unsolicited mass mailing, "spamming" or "phishing";
    - promotes or endorses false or misleading information or illegal activities or conduct that is abusive, threatening, obscene, defamatory or libelous;

        - promotes or endorses an illegal or unauthorized copy of another person's copyrighted work;
        - contains restricted or password only access pages or hidden pages or images;
        - displays or links to pornographic, sexually explicit or any other indecent material;
        - solicits passwords or personal data from other users; or
        - violates the rights of or harms or threatens the safety of other users or the Service.
- **Warranties and Disclaimers**
    - HBL warrants that it will perform its obligations in a professional manner in accordance with prevailing industry standards and make reasonable efforts to keep the required service operational.
    - The Service is provided "as is". You acknowledge that the Service is not error-free. HBL makes no warranties, expressed or implied, with respect to the availability, merchantability, fitness for a particular purpose, non-infringement, accuracy, completeness, performance and quality of service of HBL's WhatsApp Self-Service Banking Channel or otherwise.
- **Liability**
    - HBL (including, but not limited to, its shareholders, executives, officers, affiliated companies, partners and their contractors, officers, directors and employees) shall not be liable for any damages, whether arising under law, contract, warranty, indemnification, tort or otherwise, including, without limitation, incidental and consequential damages, loss of profits or business opportunities, or damages resulting from loss of data or loss of access to the services or otherwise.
- **Indemnity**
    - You agree to indemnify, defend and hold harmless HBL (including, but not limited to, its shareholders, executives, officers, affiliated companies, partners and their contractors, officers, directors and employees) from all claims, liabilities and expenses (including attorney's fees) that arise from your misuse of services in breach of the Terms or applicable laws.
    - HBL reserves the right to assume the exclusive defense and control of any matter otherwise subject to indemnification by you. You shall cooperate in good faith with HBL in asserting any available defenses.
- **Force majeure**
    - Force Majeure means any circumstances beyond the reasonable control of either party, including, without limitation, fire, explosion, strikes or other labor disputes, riots or other civil disturbances, voluntary or involuntary compliance with any law, order regulation, recommendation or request of any governmental authority, and errors or downtime in networks, power supply, gateway or similar failures of communication. Neither party will have any liability, other than for the payment of money owing, for their failure to perform any of their contractual obligations arising out of or in connection with events of force majeure.
- **Termination**
    - HBL WhatsApp Self-Service Banking Channel may be deactivated anytime through your personal account settings on WhatsApp
    - HBL may stop providing service to you, or add limits to your service, if you act in breach of the Terms or applicable laws, your right to use service and

access its content will in any event immediately, without notice, terminate without refund of any fees.

- **Changes**
  - We may also update or otherwise amend the Terms, for instance to reflect changes to the Service or changes to the law.
  - We will publish any amended Terms on the Website. Your continued use of HBL's service after such publication or notification is considered as an acceptance of the amended Terms. We encourage you to check the Website regularly. If you not agree to the amendments, you should discontinue your use of the Service.
- **Partial Invalidity**
  - If any provision of the Terms is declared invalid or unenforceable by a court or other binding authority, the remaining terms (or parts), conditions and provisions shall continue to be valid and enforceable to the fullest extent permitted by law
- **Language versions**
  - Any translations of the Terms from English into another language are made solely for your convenience. In the event of discrepancies between different language versions, the English version shall prevail.
- **Choice of Law and Dispute Resolution**
  - The Terms shall be governed by and interpreted in accordance with Pakistan laws. Any dispute, controversy or claim arising out of or in connection with the Terms shall be subject to the jurisdiction of the Pakistani courts at Islamabad as the legal venue.